

[doc. web n. 10000804]
Provision of February 22, 2024
Register of Provisions
No. 99 of February 22, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data, and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
the "Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data, and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING by Dr. Agostino Ghiglia;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX complained that the Chamber of
Commerce, Industry, Handicrafts, and Agriculture (CCIAA)
of XX (hereinafter, the "Chamber of Commerce"),
by publishing in the online chamber register the municipal council resolution No. XX of XX, titled "XX" -
from XX to XX

with clear references to his name and surname, and then until XX without such references, replaced with "omissis" - would have unlawfully disseminated personal data concerning him, related to an ongoing dispute with the Chamber of Commerce regarding matters related to the management of the employment relationship. In particular, with the determination in question, the Council was informed by the Secretary General of the Chamber of Commerce, acknowledging that "the attorney [...], appointed by the chamber entity to defend and represent it in court in the appeal pursuant to Article 414 of the Civil Procedure Code [...] (XX) [...] has informed that the Court of XX – Labor Judge has issued ruling No. XX, published on XX, with which the appeal was fully rejected, with costs being borne by the parties."

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Chamber of Commerce, with note prot. n. XX of XX, stated, in particular, that:

"this is a mere communication and not a complex deliberative act, with minimal content and lacking any knowledge or motivational elements related to underlying facts that could harm the dignity of the interested party";

"the Regulation for the management of the Online Register, adopted by resolution of the Chamber Council No. XX of XX, provides in Article 2, paragraph 1, that 'The Register is the instrument through which the obligations of legal publicity and the guarantee of certainty of the effects of acts adopted by the Entity are fulfilled, also for the purpose of the deadline for appeal; consequently, the purpose of the processing must be referred to this provision'";

"the act was published [...] from XX to XX: from XX to XX with the indication of the name of the appealing party [...] and from XX to XX with the omission of the name of the appealing party";

"the Administration, however, in the meeting of XX, regulated the methods of publication of acts providing for the omission of personal data in order to protect the privacy of the interested parties."

With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts that emerged following the investigative activity, notified the Chamber of Commerce, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letter a), and paragraphs 2 and 3, letter b), 6, paragraph 1, letter c) and e), of the Regulation, as well as 2-ter, paragraphs 1 and 3,

of the Code (in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021, in force at the time of the complaint), for the Chamber of Commerce having disseminated personal data of the complainant in a manner not compliant with the principles of lawfulness, fairness, and transparency, and in the absence of a legal basis. With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981). With note of XX (prot. n. XX), the Chamber of Commerce of the specific context and details provided in the document.

1. The Authority has received certain elements deemed useful for its assessment of the elements referred to in Article 83, paragraph 2, of the Regulation, stating, in particular, that:
“The measures adopted by the bodies of the Chamber of Commerce are published in the register for seven days, as part of the general process of the supplementary phase of the administrative procedure as provided for by Article 62 of R.D. 2011/1934. In the communication in question, only the name and surname (the only subject involved) were reported in the body of the text, but not in the subject; therefore, to obtain this information, it was necessary to read the entire document. It was, however, published for only three days (from XX to XX) and then replaced with a document where personal data were removed”;
“The publication of documents with the removal of personal data requires an intervention by the operator who modifies the PDF by ‘whiting out’ the parts not to be published. It was solely a mistake. An unintentional violation of the regulation on the protection of personal data [...]”;
“The Office promptly replaced the document, publishing for the remaining publication period a document with the personal data redacted”;
“A specific Regulation on the management of the online Register has been adopted, which unequivocally defines the interested parties, publication methods [...; such] Regulation [...] is currently being updated”;
“The Chamber promptly took action to remove the name from the body of the measure [...]”;
“The judgment subject to communication was not published, and it is further specified that it pertains to a labor dispute and does not concern either special categories of data pursuant to Article 9 of the [Regulation] or data related to criminal convictions and offenses pursuant to Article 10 of the [Regulation]”.

3. Outcome of the investigative activity.

The regulation on the protection of personal data provides that public entities, within the work context, may process the personal data of the interested parties, including those related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is “necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Articles 2-ter and 2-sexies of the Code, in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to the complaint).

European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation with regard to processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]” (Article 6, paragraph 2, of the Regulation). In this regard, it is highlighted that the operation of disseminating personal data (such as publication on

the Internet) by public entities is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation (cf. Article 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts of the complaint).

The data controller is required, in any case, to comply with the principles regarding data protection, among which are “lawfulness, fairness, and transparency” as well as “data minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letters a) and c), of the Regulation).

That said, in light of what emerged from the preliminary investigation and the statements made by the Chamber of Commerce, it is established that, between XX and XX, although due to a mere human error, the Chamber of Commerce published on its official website a copy of the Executive Board resolution No. XX of XX, titled “XX,” with which the Chamber Board acknowledged the outcome of a civil judgment brought by the complainant against the Chamber of Commerce in relation to matters related to the employment relationship.

The publication of this document consequently resulted in the online dissemination of the aforementioned information related to the complainant, who was identified by reference to the name and surname, clearly stated in the document. Furthermore, since judgments are subject to publication for legal informatics purposes (cf. Article 51 of the Code), the clear indication of the details of the judgment potentially allowed third parties to become aware of the entire content of the same, enabling them to link the matters subject to dispute to the identity of the complainant.

It is also established that the Chamber of Commerce, during the period between XX and XX, published on its official website the same resolution, omitting the complainant's personal details. It should be noted that, although during this period the Chamber of Commerce had arranged for the obscuring of the complainant's personal details, the latter was still identifiable due to the specific context and details provided in the document.

****of clear references to the judicial authority****

that issued the ruling (“Court of XX – Labor Judge”), the general register number of the proceeding (“XX”) as well as the number and date of publication of the same (“ruling no. XX, published on XX”). It is not, in fact, proven in the records that the judicial authority had ordered the annotation on the aforementioned ruling aimed at preventing, in the event of reproduction of the same in any form, the indication of the personal details and other identifying data of the interested party (see art. 52, paragraph 1, of the Code).

The publication of the Executive Committee's resolution in a manner unsuitable to ensure that the complainant could not be identified - either with a clear reference to the name and surname and either without such reference but with the indication of the details from the ruling, which nonetheless allowed for indirect identification of the interested party - has, therefore, resulted in the dissemination of personal data relating to the same.

In relation to this dissemination, the Chamber of Commerce has not indicated any legal provision or, in cases provided for by law, regulation, that could justify the processing in question.

On the other hand, the same art. 62 of the Royal Decree of September 20, 1934, no. 2011, cited by the Chamber of Commerce as the provision under which the publication of the resolution in question would occur, provides that “the resolutions of the Council [but not also, as in this case, of the Executive Committee], within fifteen days following the meeting in which they were taken, must be published on the council board and kept displayed there for one week” (paragraph 1), specifies that “however, for resolutions of a reserved nature, which do not concern the budget, the Council may decide on a case-by-case basis that publication be omitted or delayed” (paragraph 2).

It should also be noted that in numerous cases the Guarantor has over time declared the illegality of the dissemination of personal data of workers, with particular regard to the publication of information relating to disputes initiated between the interested parties and the employer administration (see, among many, provisions of April 13, 2023, no. 124, web doc no. 9890273; May 26, 2022, no. 196, web

doc no. 9789541; April 28, 2022, no. 149, web doc no. 9777127; January 27, 2021, no. 34, web doc no. 9549165).

Moreover, even in the presence of a specific publicity regime - a circumstance that, as mentioned, does not occur in this case, given that art. 62 of the Royal Decree of September 20, 1934, no. 2011 refers to the resolutions of the Council but not also those of the Executive Committee - it cannot entail any automaticity regarding the online dissemination of personal data, nor a derogation from the principles regarding data protection. This is further confirmed by the data protection system contained in the Regulation, under which it is provided that the data controller must implement “appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed” and must be “able to demonstrate” – in light of the principle of “accountability” – that it has done so (arts. 5, para. 2, and 24, 25, para. 2, of the Regulation; see also provision of April 13, 2023, no. 124, cited).

In light of the above considerations, it must be concluded that the Chamber of Commerce has disseminated the personal data of the complainant in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of arts. 5, para. 1, letter a), and paras. 2 and 3, letter b), and 6 of the Regulation, as well as 2-ter, paragraphs 1 and 3, of the Code (in the text prior to the amendments made by the decree-law of October 8, 2021, no. 139, in force at the time of the complaint facts).

From the documentation in the records, however, it does not appear that the dissemination concerned special categories of personal data or “judicial data,” as suggested in the complaint, it being necessary to recall that the guarantees provided for in arts. 10 of the Regulation and 2-octies of the Code apply exclusively to personal data relating to criminal convictions and offenses or related security measures, and not to information relating to civil disputes.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under art. 168 of the Code - while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the proceeding and are insufficient to allow for the archiving of the present proceeding, given that none of the cases provided for in art. 11 of the Guarantor Regulation no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Chamber of Commerce is noted, for having disseminated the personal data of the complainant in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of arts. 5, para. 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code (in the text prior to the amendments made by the decree-law of October 8, 2021, no. 139).

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, art. 83, para. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations are subject to the sanction provided.

from Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, given that the publication of the resolution in question ceased on XX, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures,

depending on the circumstances of each individual case” and, in this context, “the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in the specific case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

That said, it is noted that the violation concerned personal data relating to a single data subject and the dissemination of the same occurred over a limited time frame, namely from XX to XX (see Article 83, paragraph 2, letter a), of the Regulation). Furthermore, the violation is of a negligent nature, having occurred, at least with regard to the clear mention of the name and surname of the complainant, due to mere human error (see Article 83, paragraph 2, letter b), of the Regulation), and did not concern particular categories of personal data or personal data relating to criminal convictions and offenses (see Article 83, paragraph 2, letter g), of the Regulation).

In light of these considerations, it is believed that, in the specific case, the level of severity of the violation committed by the data controller is low (see European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

For the purposes of quantifying the sanction, it is then believed that the following mitigating circumstances should be taken into account: the Chamber of Commerce has offered good cooperation with the Authority during the investigation, having also represented (see note of 16 XX, cited) that, in light of the facts that occurred, it has initiated the review of its “Regulation on the management of the Online Register” (see Article 83, paragraph 2, letter f), of the Regulation); there are no relevant previous violations committed by the Chamber of Commerce (see Article 83, paragraph 2, letter e), of the Regulation).

By reason of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000 (two thousand) for the violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code (in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021), as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the dissemination of the complainant's personal details and the details of the judgment issued by the judicial authority could indirectly allow third parties to become aware of the content of that judgment, further compromising the privacy sphere of the data subject, it is also believed that the accessory sanction of publication on the Authority's website of this provision should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019.

Finally, it is noted that the prerequisites of Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Chamber of Commerce for violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code (in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021), in the terms set out in the motivation;

ORDERS the Chamber of Commerce Industry Crafts and Agriculture of XX, in the person of the legal representative pro tempore, with registered office at Largo Gian Battista Vico, 3 - 66100 Chieti (CH),

Tax Code 02558590697, to pay the sum of €2,000 (two thousand) as an administrative pecuniary sanction for the violations indicated in the motivation.

It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS the aforementioned Chamber of Commerce, in case of non-compliance...

Definition of the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of €2,000 (two thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of Law No. 689/1981;

ORDERS

pursuant to art. 166, paragraph 7, of the Code, the publication of this provision on the website of the Authority, considering that the conditions referred to in art. 17 of the Regulation of the Authority No. 1/2019 are met.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 22, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei